



CHAPTER xl.

An Act to confirm a Provisional Order made by one of His Majesty's Principal Secretaries of State under the Marriages Validity (Provisional Orders) Acts 1905 and 1924. A.D. 1926.
—

[15th July 1926.]

WHEREAS the Right Honourable Sir William Joynson-Hicks Baronet one of His Majesty's Principal Secretaries of State made the Provisional Order set out in the schedule hereunto annexed under the provisions of the Marriages Validity (Provisional Orders) Acts 1905 and 1924: 5 Edw. 7.
c. 23.

And whereas it is requisite that the said Order should be confirmed by Parliament: 14 & 15
Geo. 5. c. 20.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as set out in the schedule hereunto annexed is hereby confirmed. Order in
schedule
confirmed.

2. This Act may be cited as the Provisional Order Short title.
(Marriages) Confirmation (No. 2) Act 1926.

A.D. 1926.

S C H E D U L E.

WHEREAS power is given to a Secretary of State by the Marriages Validity (Provisional Orders) Acts 1905 and 1924 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

And whereas by an Instrument dated the seventeenth day of December one thousand nine hundred and three under the common seal of the Ecclesiastical Commissioners the new church at Shaldon in the parish of Saint Nicholas in the county of Devon and the diocese of Exeter was substituted for the old church of Saint Nicholas situate within and until that date the parish church of the said parish :

And whereas divers marriages have nevertheless been solemnized in the said old church of Saint Nicholas between the seventeenth day of December one thousand nine hundred and three and the first day of November one thousand nine hundred and twenty-five :

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of marriages solemnized at the said old church of Saint Nicholas and to make certain supplemental incidental and consequential provisions :

Now therefore I the Right Honourable Sir William Joynson-Hicks Baronet one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Marriages Validity (Provisional Orders) Acts 1905 and 1924 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) All banns of matrimony and marriages published and solemnized between the seventeenth day of December one thousand nine hundred and three and the first day of November one thousand nine hundred and twenty-five in the old church of Saint Nicholas in the parish of Saint Nicholas in the county of Devon and the diocese of Exeter shall be deemed to have been as valid as if they had been published and solemnized in a church in which such banns might be published and marriages solemnized lawfully :

[16 & 17 GEO. 5.] *Provisional Order* [Ch. xl.]
(*Marriages*) *Confirmation (No. 2) Act, 1926.*

- (2) A minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized such marriage : A.D. 1926. —
- (3) The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

Given under my hand this fifth day of May one thousand nine hundred and twenty-six.

W. JOYNSON-HICKS.

Home Office,
Whitehall.

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